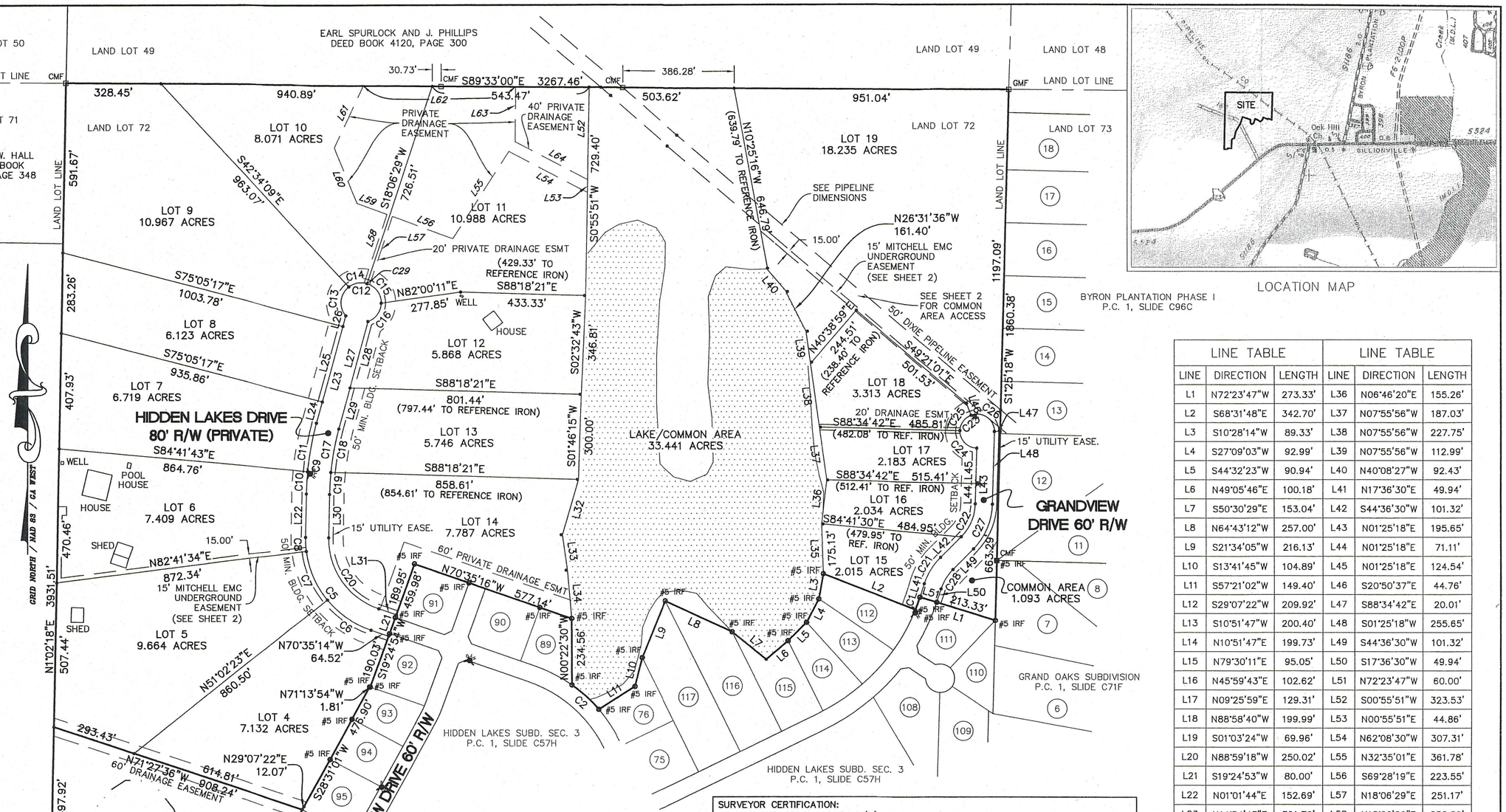
CLERK OF COURTS RECORDING BOX

CURVE TABLE				
CURVE	LENGTH	RADIUS	CHORD BEARING	CHORD DIST.
C1	46.58'	690.00'	N19°32'13"E	46.58'
C2	127.14'	519.83'	N47°19'58"W	126.82'
C3	314.11'	60.00'	S10°51'47"W	60.04'
C4	314.16'	60.00'	N88°58'40"W	60.00'
C5	424.98'	340.00'	N34°46'45"W	397.85'
C6	187.68'	340.00'	N54°46'26"W	185.30'
C7	187.83'	340.00'	N23°08'01"W	185.45'
C8	49.47'	340.00'	N03°08'21"W	49.42'
C9	252.00'	1040.00'	N07°58'14"E	251.38'
C10	77.61'	1040.00'	N03°10'00"E	77.59'
C11	174.39'	1040.00'	N10°06'30"E	174.18'
C12	354.67'	70.00'	S75°05'17"E	80.00'
C13	113.19'	70.00'	N06°05'14"E	101.26'
C14	67.10'	70.00'	N79°52'19"E	64.56'
C15	90.85'	70.00'	S35°29'14"E	84.61'
C16	83.53'	70.00'	S35°52'41"W	78.66'
C17	232.61'	960.00'	S07°58'14"W	232.05'
C18	155.43'	960.00'	S10°16'26"W	155.26'
C19	77.19'	960.00'	S03°19'56"W	77.17'
C20	324.98'	260.00'	S34°46'45"E	304.24'
C21	108.38'	230.00'	S31°06'30"W	107.38'
C22	128.14'	170.00'	N23°00'54"E	125.12'
C23	282.74'	60.00'	S46°25'18"W	84.85'
C24	94.25'	60.00'	S43°34'42"E	84.85'
C25	70.93'	60.00'	S35°17'21"W	66.87'
C26	117.56'	60.00'	N54°42'39"W	99.64'
C27	173.36'	230.00'	S23°00'54"W	169.29'
C28	80.11'	170.00'	S31°06'30"W	79.37'
C29	20.07'	70.00'	N72°40'36"W	20.00'
C30	161.24'	60.00'	S62°07'37"E	116.92'
C31	152.87'	60.00'	S87°51'06"W	114.75'



LOCATION MAP

LINE TABLE			LINE TABLE		
LINE	DIRECTION	LENGTH	LINE	DIRECTION	LENGTH
L1	N72°23'47"W	273.33'	L36	N06°46'20"E	155.26'
L2	S68°31'48"E	342.70'	L37	N07°55'56"W	187.03'
L3	S10°28'14"W	89.33'	L38	N07°55'56"W	227.75'
L4	S27°09'03"W	92.99'	L39	N07°55'56"W	112.99'
L5	S44°32'23"W	90.94'	L40	N40°08'27"W	92.43'
L6	N49°05'46"E	100.18'	L41	N17°36'30"E	49.94'
L7	S50°30'29"E	153.04'	L42	S44°36'30"W	101.32'
L8	N64°43'12"W	257.00'	L43	N01°25'18"E	195.65'
L9	S21°34'05"W	216.13'	L44	N01°25'18"E	71.11'
L10	S13°41'45"W	104.89'	L45	N01°25'18"E	124.54'
L11	S57°21'02"W	149.40'	L46	S20°50'37"E	44.76'
L12	S29°07'22"W	209.92'	L47	S88°34'42"E	20.01'
L13	S10°51'47"W	200.40'	L48	S01°25'18"W	255.65'
L14	N10°51'47"E	199.73'	L49	S44°36'30"W	101.32'
L15	N79°30'11"E	95.05'	L50	S17°36'30"W	49.94'
L16	N45°59'43"E	102.62'	L51	N72°23'47"W	60.00'
L17	N09°25'59"E	129.31'	L52	S00°55'51"W	323.53'
L18	N88°58'40"W	199.99'	L53	N00°55'51"E	44.86'
L19	S01°03'24"W	69.96'	L54	N62°08'30"W	307.31'
L20	N88°59'18"W	250.02'	L55	N32°35'01"E	361.78'
L21	S19°24'53"W	80.00'	L56	S69°28'19"E	223.55'
L22	N01°01'44"E	152.69'	L57	N18°06'29"E	251.17'
L23	N14°54'43"E	391.79'	L58	N18°06'29"E	252.29'
L24	N14°54'43"E	78.14'	L59	S69°28'19"E	110.16'
L25	N14°54'43"E	275.00'	L60	S22°16'30"E	209.65'
L26	N14°54'43"E	38.65'	L61	S24°57'24"W	240.09'
L27	S14°54'43"W	391.79'	L62	S89°33'00"E	527.41'
L28	S14°54'43"W	241.32'	L63	N00°27'00"E	192.93'
L29	S14°54'43"W	150.47'	L64	N62°08'30"W	283.69'
L30	S01°01'44"W	152.69'			
L31	S70°35'14"E	64.53'			
L32	S15°53'57"W	202.01'			
L33	S07°55'55"E	124.82'			
L34	S04°52'15"E	171.04'			
L35	N02°10'13"W	175.13'			

APPROVAL:
APPROVED BY PLANNING, DEVELOPMENT SERVICES AND CODE ENFORCEMENT.

PAUL FORGEY
DIRECTOR OF PLANNING,
DEVELOPMENT SERVICES AND
CODE ENFORCEMENT

7/23/18
DATE

SURVEYOR CERTIFICATION:
AS REQUIRED BY SUBSECTION (D) OF O.C.G.A. SECTION 15-6-67, THIS PLAT HAS BEEN PREPARED BY A LAND SURVEYOR AND APPROVED BY ALL APPLICABLE LOCAL JURISDICTIONS FOR RECORDING AS EVIDENCED BY APPROVAL CERTIFICATES, SIGNATURES, STAMPS, OR STATEMENTS HEREON. SUCH APPROVALS OR AFFIRMATIONS SHOULD BE CONFIRMED WITH THE APPROPRIATE GOVERNMENTAL BODIES BY ANY PURCHASER OR USER OF THIS PLAT AS TO INTENDED USE OF ANY PARCEL. FURTHERMORE, THE UNDERSIGNED LAND SURVEYOR CERTIFIES THAT THIS PLAT COMPLIES WITH THE MINIMUM TECHNICAL STANDARDS FOR PROPERTY SURVEYS IN GEORGIA AS SET FORTH IN THE RULES AND REGULATIONS OF THE GEORGIA BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND AS SET FORTH IN O.C.G.A. SECTION 15-6-67.

GENE W. WEBB
GA. REG. LAND SURVEYOR NO. 2923
LANIER ENGINEERING, INC.
GA. LAND SURVEYING FIRM NO. 991

07/18/18
DATE

GEORGIA REGISTERED No. 2923 LAND SURVEYOR GENE W. WEBB

NOTES:
1. TOTAL AREA OF SUBDIVISION IS 174.880 ACRES.
2. THIS PROPERTY IS CURRENTLY ZONED R-1.
3. MINIMUM BUILDING SETBACKS ARE:
   FRONT: 50'
   SIDE: 10'
   REAR: 20'
4. LOTS 1-14 AND 19 ARE TO BE SERVED BY INDIVIDUAL WELL AND SEPTIC SYSTEMS. LOTS 15-18 ARE TO BE SERVED BY CITY OF ALBANY WATER SYSTEM AND INDIVIDUAL SEPTIC SYSTEMS.
5. THERE IS A 15' UTILITY EASEMENT PARALLEL AND CONTIGUOUS TO ALL PROPOSED STREET RIGHTS OF WAY.
6. THIS PROPERTY IS LOCATED IN ZONE X (AREAS DETERMINED TO BE OUTSIDE THE 0.2% ANNUAL CHANCE FLOODPLAIN) AND ZONE A (NO BASE FLOOD ELEVATIONS DETERMINED) AS SHOWN ON THE NATIONAL FLOOD INSURANCE PROGRAM'S FLOOD INSURANCE RATE MAP, MAP NUMBER 13095C0085E, EFFECTIVE DATE OF SEPTEMBER 25, 2009.
7. IRON REBAR SET AT ALL CORNERS UNLESS OTHERWISE NOTED.
8. STREETLIGHTS ARE BEING INSTALLED PER COUNTY SUBDIVISION REGULATIONS.
9. ALL PRIVATE ROADS, PRIVATE RIGHTS OF WAY AND PRIVATE DRAINAGE EASEMENTS SHALL BE MAINTAINED BY THE HOMEOWNERS ASSOCIATION.

OWNER CERTIFICATION
THIS IS TO CERTIFY THAT I AM THE TRUE AND LAWFUL OWNER OR THE AGENT FOR THE OWNER OF THE PROPERTY PLATTED HEREON.

ROBERT V. BARKLEY
500 W. OGLETHORPE BLVD.
ALBANY, GA 31701
229-894-1543

ALBANY FARM, LLC
DEED BOOK 3266, PAGE 103

GRAPHIC SCALE
300 0 150 300
(IN FEET)
1 inch = 300 ft.

SURVEY DATA

E.O.C. PLAT:	1 IN 171,150
E.O.C. FIELD:	1 IN 16,691
ANGULAR ERROR:	02" PER ANGLE POINT
ADJUSTED BY:	COMPASS RULE
EQUIPMENT USED:	TOPCON GTS 223
REFERENCE DEED(S):	D.B. 978 PG. 146

THE UNDERSIGNED SURVEYOR HAS NOT BEEN FURNISHED WITH A CURRENT TITLE OPINION OR ABSTRACT OF THIS PROPERTY OR MATTERS AFFECTING THIS PROPERTY. IT IS POSSIBLE THAT THERE ARE RECORDED DEEDS, UNRECORDED DEEDS, EASEMENTS, OR OTHER INSTRUMENTS THAT COULD AFFECT THIS PROPERTY.

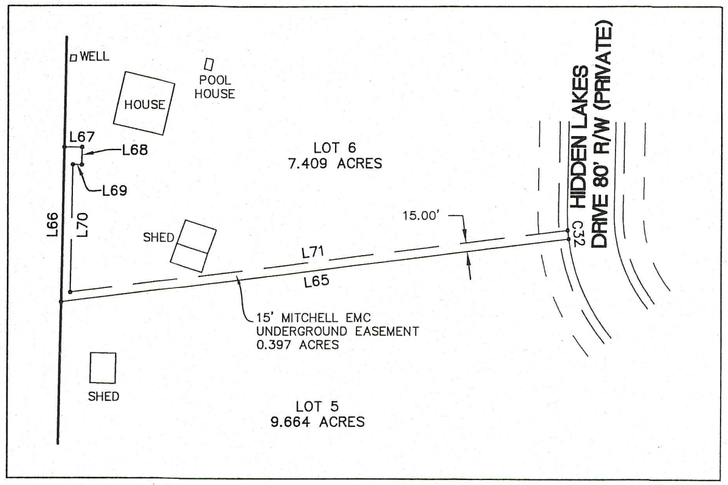
FINAL PLAT
HIDDEN LAKES ESTATES

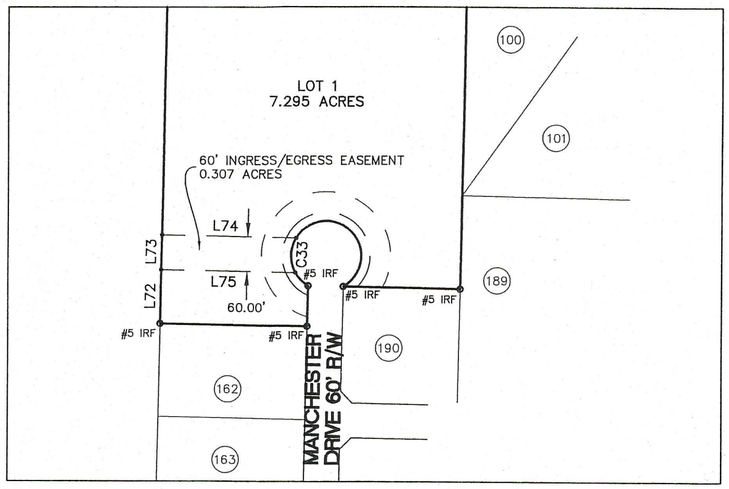
PART OF LAND LOT 72 AND 89, 2ND LAND DISTRICT
DOUGHERTY COUNTY, GEORGIA

LANIER ENGINEERING INC.
1504 W. THIRD AVENUE ALBANY, GEORGIA 31707
(229) 438-0522 FAX (229) 438-0921

SURVEYED	DSG	SCALE	1" = 300'	PROJ. NO.	16183	DATE	04/13/18	SHEET NUMBER
DRAWN	DCG	CHECKED		DWG	16183FP	SUR. DATE	01/24/17	1 OF 2

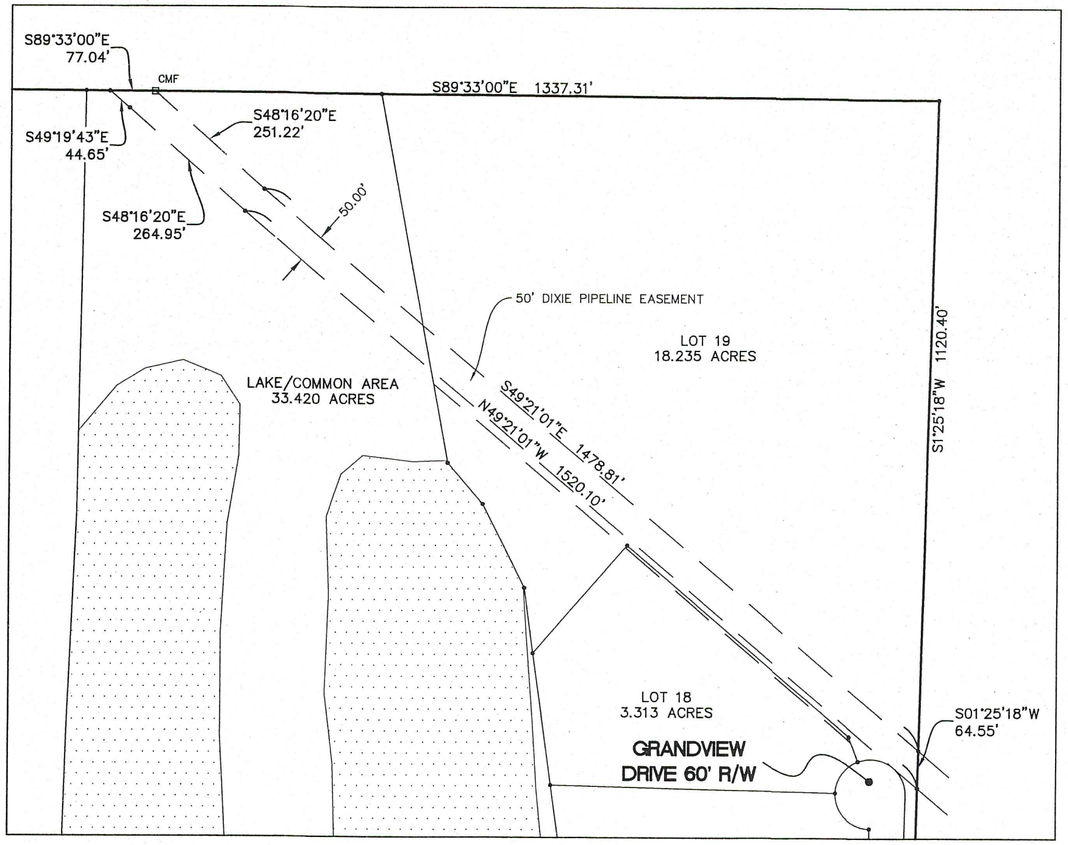
CLERK OF COURTS RECORDING BOX

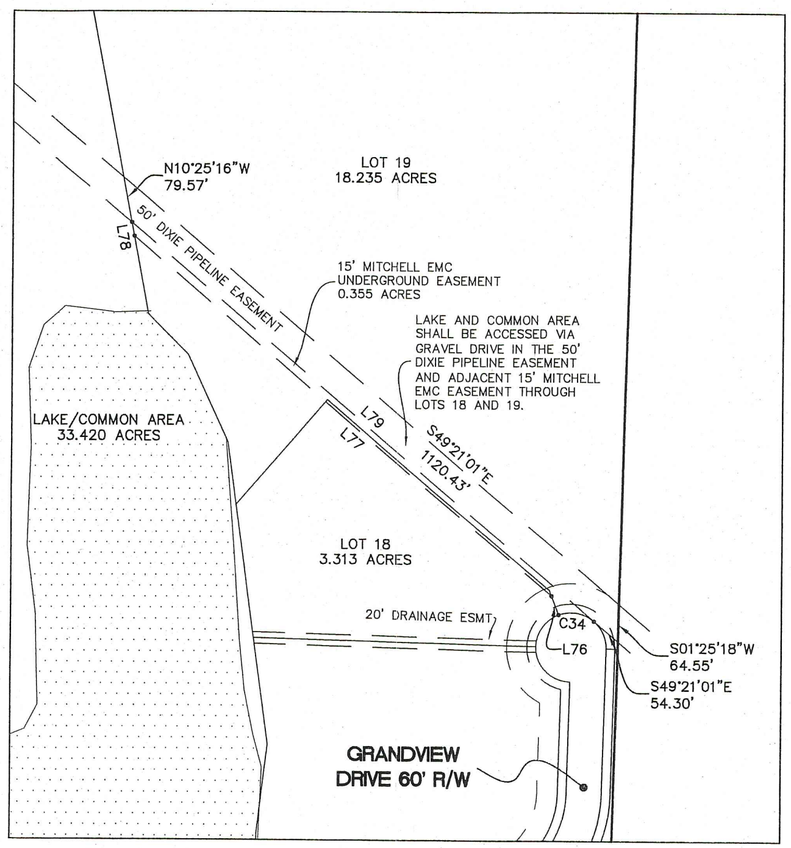




LINE TABLE		
LINE	DIRECTION	LENGTH
L65	S82°41'34"W	872.34'
L66	N01°02'18"E	267.12'
L67	S88°57'42"E	30.00'
L68	N01°02'18"E	30.00'
L69	S88°57'42"E	15.00'
L70	N01°02'18"E	219.76'
L71	S82°41'34"W	854.98'
L72	N01°02'18"E	92.04'
L73	N01°02'18"E	60.00'
L74	N88°57'42"W	228.07'
L75	N88°57'42"W	228.07'
L76	S20°50'37"E	34.29'
L77	S49°21'01"E	943.62'
L78	N10°25'16"W	23.87'
L79	N49°21'01"W	1045.05'

CURVE TABLE				
CURVE	LENGTH	RADIUS	CHORD BEARING	CHORD DIST.
C32	15.00'	314.90'	N07°18'26"W	15.00'
C33	62.83'	60.00'	S01°02'18"W	60.00'
C34	64.40'	60.00'	N80°05'49"W	61.35'





GRAPHIC SCALE

200 0 100 200

(IN FEET)

1 inch = 200 ft.

GEORGIA REGISTERED No. 2923 LAND SURVEYOR GENE W. WEBB

FINAL PLAT
HIDDEN LAKES ESTATES

PART OF LAND LOT 72 AND 89, 2ND LAND DISTRICT
DOUGHERTY COUNTY, GEORGIA

LANIER ENGINEERING INC.

1504 W. THIRD AVENUE ALBANY, GEORGIA 31707
(229) 438-0522 FAX (229) 438-0921

SURVEYED	DSG	SCALE	1" = 300'	PROJ. NO.	16183	DATE	04/13/18	SHEET NUMBER
DRAWN	DCG	CHECKED		DWG	16183FP	SUR. DATE	01/24/17	2 OF 2

DOC# 004461
FILED IN OFFICE
7/25/2018 04:36 PM
BK:4527 PG:233-240
EVONNE S. MULL
CLERK OF COURT
DOUGHERTY COUNTY

AFTER RECORDING RETURN TO:
JOSEPH W. DENT
WATSON SPENCE LLP
POST OFFICE BOX 2008
ALBANY, GEORGIA 31702-2008

PROTECTIVE COVENANTS

Conditions, Covenants, Restrictions, and Easements Affecting HIDDEN LAKES ESTATES.

THIS DECLARATION, made this 25th day of July, 2018, by HIDDEN LAKES SUBDIVISION, INC., a Georgia Corporation, hereinafter called the Declarant.

WITNESSETH:

Declarant is the owner of the real property described in Clause I of this Declaration, and is desirous of subjecting the real property described in said Clause I to the restrictions, covenants, reservations, easements, liens and charges hereinafter set forth, each and all of which is and are for the benefit of said property and for each owner thereof, and shall inure to the benefit of and pass with said property, and each and every parcel thereof, and shall apply to and bind the successors in interest, and any owner thereof;

NOW, THEREFORE, Barkley Development Company hereby declares that the real property described in and referred to in Clause I hereof is, and shall be, held, transferred, sold and conveyed subject to the conditions, restrictions, and covenants, reservations, easements, liens and charges hereinafter set forth.

DEFINITION OF TERMS

Building Site shall mean any lot, or portion thereof, or any two or more contiguous lots, or parcel of land of record and in a single ownership and upon which a dwelling may be erected in conformance with the requirements of these Covenants.

CLAUSE I
PROPERTY SUBJECT TO THIS DECLARATION

The real property which is, and shall be held and shall be conveyed, transferred and sold subject to the conditions, restrictions, covenants, reservations, easements, liens and charges with respect to the various portions thereof set forth in the various clauses and subdivisions of this Declaration is located in the County of Dougherty, State of Georgia, and is more particularly described as follows, to-wit:

All numbered lots as shown on plat of Hidden Lakes Estates as same is recorded in Plat Cabinet 7, Slide 69, in the office of the Clerk of Superior Court of Dougherty County, Georgia.

No property other than that described above shall be deemed subject to the Declaration, unless and until specifically made subject thereto.

The Declarant may, from time to time, subject additional real property to the conditions, restrictions, covenants, reservations, liens and charges herein set forth by appropriate amendment or reference hereto.

CLAUSE II
GENERAL PURPOSE OF CONDITIONS

The real property described in Clause I hereof is subject to the covenants, restrictions, conditions, reservations, liens and charges hereby declared to insure the best use and the most appropriate development and improvement of each building site thereof; to protect the owners of building sites against such improper use of surrounding building sites as will depreciate the value of their property; to preserve, so far as practicable, the natural beauty of said property; to guard against the erection thereon of poorly designed or proportioned structures, and structures built of improper or unsuitable materials; to obtain harmonious color scheme; to insure the highest and best development of said property; to encourage and secure the erection of attractive homes thereon, with appropriate locations thereof on building sites; to prevent haphazard and inharmonious improvements of building sites; to secure and maintain property setbacks from streets, and adequate free space between structures; and in general to provide adequately for a high type and quality of improvement in said property, and thereby to enhance the value of investments made by purchasers of building sites therein.

1. No building, fence, gates, columns, satellite dishes or other structure shall be erected, placed or altered on any lot in the subdivision nor shall any docks or piers be constructed or installed on the lake fronts, until the building plans, specifications, exterior color or finish, plot plans (showing the proposed location of such building or structure, docks, piers, fences, gates, columns, drives and parking area), and construction schedule have been approved in writing by the Declarant, its successors or assigns. Refusal or approval of plans, location or specifications by Declarant, may be based upon any ground, including purely aesthetic grounds, which in the sole and uncontrolled discretion of the Declarant shall seem sufficient. No alterations in the exterior appearance of any building or structure shall be made without like approval. One copy of all plans and related data shall be furnished the Declarant for its records. In the event the Declarant fails to approve or disapprove such plans within thirty (30) days after the same have been submitted to it, as required above, the approval of the Declarant shall be presumed and the provisions of this paragraph shall be deemed to have been complied with.

2. All numbered lots in said area shall be used for residential purposes exclusively. No structure shall be erected, altered, placed or permitted to remain on any lot, other than one (1) detached single family dwelling not to exceed two and one-half (2½) stories in height and one accessory building which may include a detached private garage and/or servants' quarters, provided the use of such accessory building does not include any activity normally conducted as a business. Such accessory building may not be begun prior to the construction of the main dwelling.

A guest suite or like facility with separate kitchen may be included as part of the main dwelling or accessory building, but such suite may not be rented or leased except as part of the entire premises including the main dwelling.

3. No portion of any lot, other than that covered by buildings approved as hereinbefore specified, shall be used for any purpose other than that of a lawn; nothing herein contained, however, shall be construed as preventing the use of the same for walks, drives, private swimming pools, tennis courts, and other appropriate private facilities, the planting of trees or shrubbery, the growing of flowers, or ornamental plants, or statuary, fountains or similar ornamentations, for the purpose of beautifying said premises; but no vegetables or grains of the ordinary garden or field variety shall be grown thereon without the approval of the Declarant. No weeds, underbrush or other unsightly objects shall be placed or suffered to remain anywhere thereon.

4. It shall be the responsibility of each lot owner to prevent the development of any unclean, unsightly, or unkempt conditions of buildings or grounds on such lot which shall tend to destroy the beauty of the neighborhood as a whole or the specific area.

5. No trailer, basement, tent, shack, garage, barn or other outbuilding erected, or placed, in the subdivision shall at any time be used as a residence temporarily or permanently, nor shall any structure of a temporary character be used as a residence, nor shall such temporary building or trailer be erected, placed, or allowed to remain on any lot except during the construction of the main dwelling.

6. For a one story residence, the floor area of the main structure, exclusive of one-story open porches and garages, shall not be less than 2,500 square feet. In the case of one and one-half, two or two and one-half story structure, the ground floor area shall not be less than 1,750 square feet and the total floor area shall not be less than 2,500 square feet.

7. In the event the owner of any residential lot permits any underbrush, weeds, et cetera, to grow up on any such lot to a height above two (2) feet, (except as part of a landscaping plan approved by Declarant) and on request fails to have the premises cut within thirty (30) days, agents of the Declarant may enter upon said land cut and remove the same at the expense of the owner; provided, however, that such expense shall not exceed One Hundred Dollars ($100.00) annually. The Declarant or its agents may likewise enter upon said land to remove any trash which has collected on said lot at the expense of the owner; provided, however, that such expense may not exceed One Hundred Twenty Five Dollars ($125.00) annually. This provision shall not be construed as an obligation on the part of the Declarant or its associates to provide garbage or trash pick-up service.

8. No livestock, fowl or animals of any kind, except cats, dogs and other household pets, shall be kept or harbored upon any lot. The Declarant at any time and for any reason, in its discretion, may limit or prohibit the harboring and keeping of any and all animals hereunder. However, under no circumstances, may any permitted animal be allowed to run loose as such must always be under the complete control of its owner.

9. Each lot owner shall provide receptacles for garbage in a screened area not generally visible from any road or the lake areas or provide underground receptacles, or like facilities in accordance with reasonable standards established by the Declarant. Garbage disposals

are suggested for use in all residences. In order to reduce truck traffic resulting from the use of multiple garbage and trash pickup services only one such service shall be allowed in the subdivision at any one contract period. Therefore, Declarant shall designate the particular garbage and trash pickup service to be used by the homeowners until such time a homeowners association is established after which such association shall make the designation. However, the contract for the pickup service shall be between the service so designated and each homeowner at the homeowner's expense.

10. The owner reserves unto itself, its successors and assigns, a perpetual, alienable and releasable easement and right on, over, and under the ground to erect, maintain and use electric and telephone poles, wires, cables, conduits, sewers, water mains, and other suitable equipment for the conveyance and use of electricity, telephone, gas, sewage, water or other public conveniences or utilities on, in or over the front fifteen (15) feet of each lot and such other easements as are shown on the recorded plat of the subdivision. The easements expressly include the right to cut any trees, or bushes, et cetera, grading ditching, and like action reasonably necessary to provide economical utility installation.

11. Private water well may be drilled or maintained on any building lot after first obtaining the consent of the Declarant. However, the water supply system provided for the service of said land, either private or public, shall be used as the sole source of water for water spigots and outlets located within all buildings and improvements located on each building plot. No individual water system or well shall be permitted on any building lot except solely for use on the building plot for air-conditioning and heating installations, irrigation purposes, swimming pools or other exterior use. This paragraph shall not apply in the event a central water supply system is not provided for service of any residential lot.

12. The Declarant reserves the right to change the lines on any unsold numbered lot. However, this right does not include the right to increase the number of lots as shown on the recorded plat.

13. No dwellings will be constructed on any building site unless the same is equipped for all-electric living with electricity to be the exclusive source of heart, light and power, without first obtaining the written permission of Declarant. Outside lighting, other than indirect lighting for entrance ways, shall not be permitted without the approval of Declarant.

14. No seawalls of any kind may be constructed or installed along the lake fronts and no power boats, may be operated on the lakes shown on any recorded plat of the subdivision, except electric trolling motors shall be permitted. Also, no boats, including sail boats, John boats and canoes, exceeding 14 feet in length and/or 5 feet in width shall be placed or operated on any lake and no live bait, other than crickets and earth worms, shall be used for catching or attempting to catch fish in any of such lakes. No docks or piers may be constructed, installed or placed along the lake fronts until the plans and specification for such have been approved by Declaration pursuant to Paragraph One above.

15. No commercial trucks may be parked, stored or kept within the subdivision. However, this provision is not intended to prevent delivery trucks and moving vans from entering the subdivision for their normal business deliveries or pickups.

16. No clotheslines or antennas of any kind shall be permitted on a platted building lot in the subdivision. Satellite dishes are allowed, but limited to thirty-six inches in diameter without prior written approval of Declarant. No satellite dishes are allowed on the front of any house or in the front yard without prior written approval of Declarant.

17. Driveways on all lots must be paved, except those lots in the gated section of the subdivision, which are 4 acres or more, may have crushed asphalt driveways upon written approval of Declarant as to the material to be used for said driveway.

18. The existence of mature trees play a major role in the preservation of the natural beauty of the subdivision and therefore no tree with a trunk diameter of 12 inches or more shall be cut or severed from any lot without the approval of Declarant.

CLAUSE III
COMMON AREA AND OWNERS ASSOCIATION

1. Declarant intends to develop additional sections and phases of Hidden Lakes Subdivision which will include a number of lakes and open space which will be conveyed to a Home Owners Association, hereinafter provided, for the benefit of all owners of lots located in the area developed by Declarant and identified on recorded plats as "Hidden Lakes Estates Section 1 & 2," regardless of section or phase numbers. However some of the lakes will have common area or public access and some lakes will not have any common area or public access and no provisions in these covenants shall be construed so as to create any express or implied easements to go upon or cross any platted or otherwise designated building lot for purposes of gaining access to any lake. Also, no provision in these covenants shall be construed so as to obligate Declarant to develop any additional sections or phases and all lakes developed by Declarant and open space shall remain the private property of Declarant until such are declared common area and conveyed by Declarant to the Home Owners Association hereinafter provided.

(a) The Board of Commissioners of Dougherty County shall have no responsibility to maintain, repair, resurface, rebuild or otherwise improve streets, signs, drainage improvements or any other appurtenances within general purpose public access and utility easements established for private streets. All such maintenance, repair and replacement responsibilities shall remain the responsibility of the Association and its members.

2. Declarant has caused to be incorporated a non-profit corporation known as HIDDEN LAKES OF ALBANY UNIT OWNERS ASSOCIATION, INC., (hereinafter referred to as "Owners Association"), with the powers and duties set forth below. Any purchaser of any one of the lots in the subject property is deemed to have consented specifically to this provision and does specifically agree to comply with the provisions as set out herein. Each purchaser of any lot of said subdivision shall be a member of the Owners Association. Said association and the Board of Directors thereof shall have the following duties, rights and powers:

(a) To adopt rules for the regulation and operation of the lakes, open space and common areas located on the subject property and to change, modify or adjust, from time to time, the different and various classifications of assessment amounts in accordance with the By-Laws of the Owners Association.

(b) To levy and collect monthly, quarterly, annual or periodic assessments, against and from owners; to collect delinquent assessments by suit or otherwise, and to collect such other assessments as are herein authorized. Any assessments which are not paid when due shall be delinquent. Any assessment due for a period of ten (10) days shall incur a late charge in an amount as the Board of Directors may determine time to time. The Owners Association shall cause a notice of delinquency to be given to any member who has not paid within ten (10) days following the due date. If the assessment is not paid within thirty (30) days, a lien as herein provided for shall attach and in addition the lien shall include the late charge, interest on the principal amount due plus the late charge at ten (10%) percent from the date first due and payable, all costs of collection, reasonable attorney's fees actually incurred, and any other amounts as provided by law. In the event that the assessment remains unpaid after sixty (60) days, the Owners Association may institute suit to collect such amounts or to foreclose its lien. Each owner, by his acceptance of a deed to a lot subject to these covenants, vests in the Owners Association or its agents the right and power to bring all actions against such owner personally for the collection of such charges as a debt or foreclose the aforesaid lien in the same manner as other liens for the improvement of real property. The lien provided for in this Article shall be in favor of the Owners Association and shall be for the benefit of all other owners. The Owners Association, acting on behalf of the Owners, shall have the power to bid in the residence at any foreclosure sale and to acquire, hold, lease, mortgage and convey same. No owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the common area or by abandonment of such owner's lot.

(c) From funds collected, to provide for maintenance, management, insurance and other expenses pursuant to obligations.

(d) To lease, acquire and sell real and personal property pursuant to its obligations.

(e) To enter upon the lots when necessary with as little inconvenience as possible to the occupants concerned in connections with the duties outlined in these covenants.

(f) To enjoin or seek damage from the owners of the lots in the subject property for violation of these covenants or for violation of any of the rules of said association.

(g) To employ workmen, maids, janitors, gardeners, and others, if needed; to contract for services to be performed, including those of a manager or management company, if needed, and to provide for garbage collection for entire subdivision; to purchase supplies and equipment, if needed; to enter into contracts; and, generally, to have the powers of a property manager in connection with the matters herein set forth, except that the Owners Association may not encumber or dispose of the title of any owner except to satisfy a lien, award or judgment against such owner for violation of these restrictive covenants. The Owners Association shall not enter into any contract for the furnishing of services, materials or supplies, the terms of which are in excess of one (1) year; and, further, any contract entered into by the Owners Association shall be terminable by the Owners Association for cause upon thirty (30) days written notice.

(h) To employ counsel, attorneys and auditors in connection with the legal matters of the Owners Association and audit its books and records, which audit shall be available

to owners of the lots of subject property for inspection at the Owners Association office.

(i) To deposit funds in the hands of the Board of Directors for said Owners Association which are not necessary for immediate disbursement and place in a savings account at one or more banks or savings and loan associations for the purpose of earning the standard rate of interest; same being an institution insured by F.D.I.C. or F.S.L.I.C.

(j) To maintain the entrances to the subdivision, lakes and lake areas, open space, and other common areas as identified and located on the plat of the subdivision. To maintain the pedestrian walkways within the subdivision; provided, however, that the Owners Association shall not maintain gardens, lawns, etc., within the residential lots owned by members.

3. The Board of Directors of the Owners Association shall consist of not less than three (3) individuals, each of whom shall be a voting member, and said board shall be elected at each annual meeting by the members of the Owners Association as provided for in the By-Laws.

4. Membership in the Owners Association shall consist of the following:

(a) Any person acquiring an ownership interest in the lots described in the subject property, other than as a mortgagee or a lien holder, shall automatically become a member of the Owners Association except that only one (1) membership shall be allowed per lot. Where lots are owned by more than one (1) owner, such owner shall, by written instrument, designate one (1) of such owners to be the sole voting member. In the absence of such designation, the Board may designate one of the owners as the sole voting member. Upon the sale or transfer of a lot by an owner, that owner's membership shall transfer and membership shall pass with the title of the property. Ownership of the subject lot shall be the sole qualification for a membership. Until Declarant relinquishes in writing its right to have a member on said board, Declarant shall have the right to designate one (1) person to be a member of said Board of Directors.

(b) Members shall be entitled to one (1) vote per each lot owned.

(c) Matters pertaining to indemnification of Board Members, limitations of liability of the Owners Association, if any, assessments for expenses, manner of enforcement of assessments and the fixing of liens for said assessments and maintenance shall be provided for in said By-Laws as agreed upon from time to time by the majority of the owners of the lots of the subject property.

CLAUSE IV
MISCELLANEOUS

1. The provisions of this Declaration shall run with and bind title to the Property, shall be binding upon and inure to the benefit of all Owners and mortgagees and their respective heirs, executors, legal representatives, successors and assigns, and shall be and remain in effect for a period of twenty (20) years from and after the date of the recording of the Declaration, after which time this Declaration shall be automatically renewed for an unlimited number of successive twenty (20) year periods; provided, however, that there shall be no renewal or extension of this Declaration if, during the last year of the initial twenty (20) year period or the last year of any twenty (20) year renewal period, a majority of the Total Association Votes are cast in favor of

terminating this Declaration at the end of the then current term. In the event that the Association votes during said last year to terminate this Declaration, an instrument evidencing such termination shall be filed in the deed records of the Clerk of the Superior Court of Dougherty County, Georgia, such instrument to contain a certificate wherein the president of the Association swears that such termination was duly adopted by the requisite number of votes. Every purchaser or grantee of any interest in any Property, by acceptance of a deed or other conveyance therefor, thereby agrees that the provisions of this Declaration shall run with and bind title to the Property as provided hereby.

2. Invalidation of any one of these Covenants or any part thereof by judgment or court order shall in no wise affect any of the other provisions which shall remain in full force and effect.

3. In the event any person or persons shall violate or attempt to violate any of the Covenants herein, it shall be lawful for Declarant, the Owners Association of any other person or persons owning any real property situated in said tract, to prosecute any proceedings at law or in equity against the person or persons violating or attempting to violate any such Covenants, and either to prevent him or them from so doing or to recover damages or other dues for such violation.

4. Declarant reserves and shall have the full right to add to, alter, amend, revoke, release and waive the covenants and restrictions in the Declaration for any purpose or purposes, in whole or in part.

5. Declarant shall have the right to assign or delegate its rights and duties hereunder, in whole or in part, from time to time; and this Declaration shall be binding upon and shall inure to the benefit of the successors and assigns of the Declarant.

IN WITNESS WHEREOF, Hidden Lakes Subdivision, Inc. has caused these covenants to be executed by its proper officers, who have affixed its corporate seal, the day and year first above written

HIDDEN LAKES SUBDIVISION, INC.

By: _____
Robert V. Barkley, Jr. President/Secretary

(Corporate Seal)

Signed, sealed and delivered
in the presence of:

_____
Unofficial Witness

_____
Notary Public
My Commission Expires: 12/12/2021

TRACI CHAPLIN NOTARY PUBLIC DOUGHERTY COUNTY GEORGIA EXPIRES December 12, 2021

(Notary Seal)